

Parashas Dvarim opens with Moses retelling the story of the appointment of judges to guarantee the orderly entry of the people to the land of Israel and to ensure their continued control of the land, as described in a previous article. Parashas Dvarim is always read before Tisha B'Av. Maimonides associates Parashas VaEschanan with being read after Tish B'Av, so it is axiomatic that Dvarim must come before it. What is the connection between Tisha B'Av and Parashas Dvarim?

As we will explain, Parashas Dvarim is not merely a historical review before Tisha B'Av; it is a warning that Jewish continuity depends on a trustworthy system of justice, leaders who refuse to traffic in slander and will not allow personal agenda to masquerade as Torah authority.

אל כל ישראל. אלו הוכיח מקצתן, היו אלו שבשוק אומרים אתם הייתם שומעים מכן עמכם ולא השיבותם דבר מכה וכה? אלו היינו שם היינו משיבים אותו, לכה כנסם פלם ואמר להם הרי כלכם כאן, כל מי שיש לו תשובה ישיב (ספרי):

At the start, Rashi mentions that Moses made sure that everyone was present when he began his narration of their travels and the giving of the Mitzvot that make up the bulk of the Book of Deuteronomy. Why was it so important that every, last person be present? Rashi says that he wanted to make sure that when he rebuked them no one would retort and say “you took all that from the son of Amram and you didn’t answer back? Had I been there I would have said such and such”. Moses said to them, you are all present and here, if you have something to respond or say go ahead.

ומשאכם. מלמד שהיו אפיקורסין, הקדים משה לצאת, אמרו מה ראה בן עמרם לצאת? שמא אינו שפוי בתוך ביתו; אחר לצאת, אמרו מה ראה בן עמרם שלא לצאת? מה אתם סבורים? יושב ויועץ עליכם עצות רעות וחושב עליכם מחשבות:

Rashi also says there were those among the Jewish People who were constantly looking to find unsavory stories about Moses. “Why is he late or early? Surely there must be strife in his house, or he is hatching plots against you”, they would say. These people were talking about Moses, the greatest human being who ever existed! He alone came the closest a human could come to Gd. How could they speak negatively about him?

Immediately afterwards Moses relates the story of the appointment of judges and the preparation to enter the land. Indeed, after the judges are in place, Gd tells them to simply rise up and take over the land without even battling the local populations, simply inherit the land without a fight. What is the connection between the malcontents, the story of the judges and the command to enter the land?

The commandment to appoint judges is spread over several sections of the Torah. The initial part is in Parashas Yisro, with Moses’ father-in-law advising him to delegate responsibility for judging the people to other, worthy people who satisfy specific requirements, including honesty and a fastidiousness to uphold the law regardless of who comes before them. Parashas Mishpatim elaborates more on the responsibilities of the judge. Rashi quotes the Midrash:

לא תשא שמע שוא. פתרגומו, לא תקבל שמע דשקר, אזהרה למקבל לשון הרע ולדין שלא ישמע דברי בעל דין עד שיבא בעל דין חברו (שם):

לא תשא שמע שוא שלא ידבר סניגורין לפניו מניין לדין שלא ישמע טענת אחד מבעלי דיניו עד שלא יבוא חברו [ת"ל] לא תשא שמע שוא: ומניין שלא יטעון אדם טענת שקר ת"ל לא תשא שמע שוא מניין שלא יטעים אדם דבריו לדין תחלה ת"ל לא תשא שמע שוא לא תשיא שמע שוא: ומניין אזהרה למספר לשון הרע ולמקבל לשון הרע ת"ל לא תשא שמע שוא לא תשיא: אל תשת ירך עם רשע. זו אזהרה שלא ישיא רשע עד: ומניין לעד אחד שיודיע בחברו שהוא רשע אל יעיד עמו ת"ל אל תשת ירך עם רשע אל תצטרף עמו לעדות: להיות עד חמס. אל תשת חמסן עד מכאן אמרו הרועים והגזלנים והחמסנים וכל החשודים על המון פסולין מן העדות:

Lo Tisa Shayma Shav, is a warning to a judge not to accept slander, Lashon Hora. Another explanation is it warns a judge not to accept testimony or arguments from one side without the other side on hand to present their side and refute the other. It is interesting to note that Moses begins his narration of events in Deuteronomy saying:

אִיכָה אֶשָּׂא לְבָבִי טֶרֶחֶם וּמִשָּׂאֵם וְרִיבָם:

Moses recognized that some of the people were slandering him. The word Masachem derives from the same root, נשא, same as Lo Tisa Shayma Shav, linking Moses' burden with the Torah's warning against a judge accepting false or slanderous reports. Capable and smart individuals like Korach, attempted to slander and rebel against Moses. Malcontents like Dathan and Aviram challenged his leadership at every opportunity. Moses was the teacher of all Israel. Yet there were people who apparently could not care less about his status and role. Moses realized that he needed to delegate leadership, but it was important to select individuals with the proper character traits for the role of judge and Jewish leader. It was of paramount importance to exclude from consideration those interested in self-aggrandizement and tempted to put their personal interests before all others.

A case can be negatively influenced in multiple ways. The judge plays a central role in all of them. By allowing one litigant to present his case before the other or by allowing one litigant the possibility to embellish his claim at the expense of the other litigant, the Judge inappropriately and unethically places his thumb on the scales of justice. By accepting slanderous statements about a litigant who cannot defend himself and refute the slander he subverts justice and becomes a partner with the wicked individuals responsible for the slander.

The Torah is telling us that a Judge with an agenda or who is partial to one side cannot be trusted and must be disqualified. If a judge is willing to hear one side without any refutation from the opposing litigant, it is impossible for him to remain impartial. The side that was alienated by the judge will be depressed and will provide a weaker defense of their position than they might otherwise have. When one accepts only one side of the argument and rules based on one-sided information, it is essentially the same as accepting Lashon Hora. The litigant who has the judge's ear will surely paint his antagonist in a negative light which may not be factual. Perhaps the conniving litigant is the corrupt one. Without hearing both sides and putting both litigants on equal footing a miscarriage of justice is the only possible conclusion. A judge, rabbi or communal leader willing to do that is automatically disqualified.

The aspect of Loshon Hora goes even deeper. A judge who rules against someone without hearing all sides paints the convicted litigant in a negative light. What are the knock-off effects of this miscarriage of justice? Perhaps there is a financial loss due to people not willing to associate or do business with the aggrieved litigant. Perhaps his family is affected, his children are ostracized resulting in denied admission to schools, social circles or Shidduchim opportunities. Perhaps the individual loses opportunities for communal leadership. All these are the terrible ripple effects of Loshon Hora. Anyone involved with this behavior even once, let alone repeatedly, is a Meuvas Lo Yuchal Liskon, there is no Teshuva for these acts because they cause incalculable and irreparable damage.

We begin to see the connection between the problem of a judge accepting Loshon Hora and those who are willing to engage in it. It's a closed circle of evil that conspires to harm someone. These were the people who were willing to speak negatively about Moses. It was important that Moses appoint judges who were not pre-disposed to listen to slander. Appointing such a judge, court, rabbi or communal leader is described by Resh Lakish (Sanhedrin 7b):

אָמַר רִישׁ לְקִישׁ: כָּל הַמַּעֲמִיד דִּין עַל הַצִּיבּוֹר שְׂאִינוּ הַגּוֹן, כְּאִילוּ נֹטַע אֲשֵׁירָה בְּיִשְׂרָאֵל, שְׁנֵאמַר: "שֹׁפְטִים וְשֹׁטְרִים תִּתֵּן לָהּ", וְסָמִיד לִיה: "לֹא תִטַּע לָהּ אֲשֵׁירָה כָּל עֵץ". אָמַר רַב אֲשִׁי: וּבִמְקוֹם שֵׁשׁ תִּלְמִידֵי חֲכָמִים, כְּאִילוּ נֹטַעוּ אֲצֶל מִזְבֵּחַ, שְׁנֵאמַר: "אֲצֶל מִזְבֵּחַ ה' אֱלֹהֶיךָ".

One who appoints an unworthy judge is considered as if he planted an Asheira tree in Israel. Rav Ashi adds if there are scholars in proximity it is as if it was planted near the altar. Idolatry is one of the 3 most severe sins Judaism warn against. What is the connection between these two things and their relative severities?

The altar in the Temple was the table the Jewish People shared with Gd. Just as the table is the central location in a home where the family gathers, the altar played the same role for the Jewish Community, Knesses Yisrael, and Gd. The seat of the Sanhedrin Gedolah, the highest court, was next to the Temple. How could the placement of an Asheira tree next to the Altar not completely negate the family unit of Gd and His people? The idolatry associated with the Asheira rips apart any semblance of trust and faith between the two. They are mutually exclusive. Placing an unworthy judge in a place of worthy and legitimate scholars is a similar abomination. Both the placement of an Asheira near the altar and the installation of an incompetent or unworthy individual in a position of leadership destroys the bonds and negates the importance of the connection between Gd and the Jewish People.

Chazal were very concerned about the relationship between the scholars and the rest of the Jewish community. While the Second Temple stood, large segments of the population, particularly those who were involved in agriculture and livestock were connected to Judaism and the Temple by bringing the first fruits to the Temple, providing wheat, oil, animals for the sacrifices. The farmers would bring the fruits of Maaser Sheyni to Jerusalem. With the destruction of the Temple, their connection was severed. They viewed the scholars as elitist and disconnected from the community. To the point, that the great Rabbi Akiva said (Pesachim 49:b), when he was ignorant of Torah knowledge he would long for the opportunity to cause great harm to Torah scholars. There was a developing schism that needed to be bridged and repaired.

The Rabbis and scholars of Yavne recognized the problem. They attempted to bridge the gap by ensuring every Jew, regardless of his level of scholarship, was appreciated. The Talmud (Brachos 17a) says:

מְרַגְלָא בְּפּוּמִיָּהּ דְּרַבְּנָן דִּיבְנָה: "אֲנִי בְּרִיָּה, וְחִבְרִי בְּרִיָּה. אֲנִי מְלַאכְתִּי בְּעִיר וְהוּא מְלַאכְתּוֹ בַּשָּׂדֶה. אֲנִי מְשָׁכִים לְמְלַאכְתִּי, וְהוּא מְשָׁכִים לְמְלַאכְתּוֹ. כָּשֶׁם שֶׁהוּא אֵינוֹ מִתְגַּדֵּר בְּמְלַאכְתִּי, כֹּךָ אֲנִי אֵינוֹ מִתְגַּדֵּר בְּמְלַאכְתּוֹ. וְשָׂמָּה תֹאמַר: אֲנִי מְרַבֶּה, וְהוּא מִמְעִיט — שְׁנֵינוּ: אֶחָד הַמְרַבֶּה וְאֶחָד הַמִּמְעִיט וּבִלְבָד שְׂיִכְנוּי לְבוֹ לְשָׁמַיִם."

There was an adage often repeated by the Rabbis in Yavne that I, a scholar, and my colleague, the farmer, are both Gd's creations. I work in the city while he works in the field. I study more than he does. Lest one think that my lot and reward is greater than his, we have learned whether one accomplishes more or less, what is important is that it be done with the proper dedication to Heaven. Perhaps this is the focal point of Pirkei Avos, statements that instruct the scholar to be careful and humble. This is particularly true regarding a judge. Pirkei Avos 1:4:

הֵם אָמְרוּ שֶׁלֹּשֶׁה דְּבָרִים, הֵיוּ מִתּוֹנִים בְּדִין

There are admonishments against judging haughtily or hastily. The Torah provides a set of laws, but it is also a social contract between the people and Gd. Both litigants have obligations and must treat the other with respect and they in turn must be treated equally by those charged with judging their disputes. It was necessary to convince the people the Rabbis understood and shared their concerns and reassure them they were valued members of the Jewish Community. They had to reassure the people that they were fair, ethical and above reproach without malice towards anyone. They had no personal agenda to taint their judgement.

A judge who rules without hearing all sides violates the most basic compact our Rabbis established to maintain the connection between the different segments of the Jewish community. The Talmud in Sanhedrin (29a) tells us:

וּבְדִינֵי נַפְשׁוֹת, אִף עַל גַּב דָּלָא טַעֲנָן, טוֹעֲנִין לוֹ. וְאֵין טוֹעֲנִין לְמַסִּית. מַאי שָׁנָא מַסִּית? אָמַר רַבִּי חֲמָא בַּר חֲנִינָא: מִפְּרִיקָיָה דְּרַבִּי חֲנִינָא בַּר אֲבָא שְׁמִיעַ לִי, שָׁנָא מַסִּית דְּרַחֲמֵנָא אָמַר: "לֹא תַחְמֹל וְלֹא תִכְסֶּה עָלָיו". אָמַר רַבִּי שְׁמוּאֵל בַּר נַחֲמָן אָמַר רַבִּי יוֹנָתָן: מִנִּין שָׂאִין טוֹעֲנִין לְמַסִּית? מִנְחָשׁ הַקָּדְמוֹנִי.

In all cases but one, Jewish law requires the judges in capital cases to go above and beyond to ensure the defendant presents the best possible defense. The lone exception is Maysis. We do not make such an effort to assist his plea, even if there are extenuating circumstances the Maysis neglected to present on his own behalf. He is compared to the serpent in the Garden of Eden, who was not permitted to offer a defense of his role in the story with Adam and Eve. Why was he treated in this way? Because his actions were intended to destroy the very fabric of humanity. He could offer no acceptable defense to explain the gravity of his action or alter his penalty. There can be no greater disqualifying trait in a judge, rabbi or communal leader than treating a litigant who appears before him as a Maysis, by denying him an opportunity to present his side of the dispute.

Rabbi Soloveichik ZT”L maintained that the establishment of an honest system of justice was a Sina Qua Non for the entry of the Jewish People to the Land of Israel. For peace and harmony to rein, a strong system of justice was necessary to maintain a civil, just and kind society. The same requirement to establish a court system to maintain adherence to Torah law and civility applies to Jews who live in the diaspora, as the Torah tells us in Parashas Shoftim. It will be an important task and pre-requisite for the coming redemption which will require us to install a sound system of justice for our return from exile and fully re-inheriting the land. When installing judges in the Land of Israel or the diaspora, only judges and scholars who understand the importance of a proper system of justice in maintaining Jewish life, can participate.

The Mishna (Sanhedrin 4:5) tells us how the judges would warn the witnesses in a capital case about the gravity of their testimony and the importance of saving an innocent life. Saving a single life is equated with preserving a world, because false testimony impacts future generations, till the end of time. The same applies to judges as well. It is therefore no accident that Chazal warned judges (Sanhedrin 7a):

אָמַר רַבִּי שְׁמוּאֵל בַּר נַחֲמָנִי אָמַר רַבִּי יוֹנָתָן: לְעוֹלָם יִרְאֶה דִּין עֲצָמוּ כְּאִילוּ חֶרֶב מִנִּסָּח לֹא בֵּין יִרְכּוּתָיו, וְגִיּוֹנָם פְּתוּקָה לֹא מִתְחַתָּיו.

A judge must appreciate the severity of his responsibility and actions by viewing himself as if balancing on the sharp blade of a sword, with one wrong move landing him in the fires of Gehinnom. A scholar who participates in Lashon Hora against another scholar, emulates the behavior of the malcontents among the Jewish People who attempted to denigrate Moses' reputation. The punishment is severe (Brachos 19a):

אָמַר רַבִּי יְהוֹשֻׁעַ בֶּן לֹוִי: כָּל הַמְסַפֵּר אַחֵר מִטַּעַן שֶׁל תַּלְמִידֵי חֲכָמִים נוֹפֵל בְּגִיּוֹנָם, שֶׁנֶּאֱמַר: "וְהַמְטִים עַקְלָלוֹתָם יוֹלִיכֶם ה' אֶת פּוּעְלֵי הָאָוֶן שְׁלוֹם עַל יִשְׂרָאֵל".

Maimonides Hilchos Teshuva 3:6,8:

וְאִלוּ הֵן שְׂאִין לָהֶן חֵלֶק לְעוֹלָם הַבָּא ... וּמַטִּילִי אִימָה עַל הַצִּבּוּר שֶׁלֹּא לִשְׁם שָׂמִים. וְשׁוֹפְכֵי דָמִים. וּבַעֲלֵי לְשׁוֹן הָרַע. שְׁלֹשָׁה הֵן הַנִּקְרָאִים אִפְיקוֹרְסִין ... וְכֵן הַכּוֹפֵר בְּפִרוּשָׁה וְהוּא תוֹרָה שֶׁבַעַל פֶּה וְהַמְכַחֵשׁ מַגִּידָהּ כְּגוֹן צְדוּק וּבִיתוֹס

Like the Midrash quoted by Rashi above, Maimonides considers one who participates in slander and the denigration of a scholar an apostate, among those denied a place in the world to come. It makes no difference if the individual is the perpetrator or recipient of the slander or if he himself is a scholar or not. Engaging in actions that promote slander and defamation of another Torah scholar, and the malicious spreading of rumors, are among the most severe sins according to the Torah.

In summary, Parashas Devarim teaches that Jewish continuity depends on a proper and honest system of justice. Judges do not merely resolve disputes; they shape the community's trust, protect the dignity of every litigant, and preserve the covenantal bond of Knesses Yisrael. This is why Devarim stands before Tisha B'Av before mourning the collapse of Jewish life, we are reminded that rebuilding begins with leaders and judges who hear both sides, reject Lashon Hara, and place truth above personal agenda.

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